

By: /S/
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Defendants' addresses:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza Path
New York, New York 10038

POLICE OFFICER LOUIS CAMPANELLA, Shield #00331
c/o New York City Police Department
1 Police Plaza Path
New York, New York 10038

JOHN DOES 1-15
c/o New York City Police Department
1 Police Plaza Path
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ANTHONY POLLARD,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER LOUIS
CAMPANELLA, Shield #00331, and JOHN DOES 1-15,

Defendants.
-----X

Index No:
Date Filed:

VERIFIED COMPLAINT

Plaintiff, by and through his attorneys NAPOLI BERN RIPKA SHKOLNIK, LLP,
complains of the Defendants as follows, upon information and belief as follows:

PARTIES

1. At all times relevant to this complaint, Plaintiff ANTHONY POLLARD was and is a resident of New York State, County of Richmond.

2. At all times relevant to this complaint, Plaintiff ANTHONY POLLARD was and is an African-American male.

3. At all times relevant to this complaint, Defendant THE CITY OF NEW YORK (hereinafter referred to as the “City”) was a municipal corporation duly organized and existing under the laws of the State of New York.

4. At all times relevant to this complaint, Defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as the “NYPD”) was a law enforcement agency of the State of New York, duly organized and existing pursuant and subject to the laws, rules, and regulations of the City and State of New York.

5. At all times relevant to this complaint, Defendant POLICE OFFICER LOUIS CAMPANELLA, Shield #00331 (hereinafter referred to as “Officer Campanella”) was a duly sworn officer and employee of the City and the NYPD.

6. At all times relevant to this complaint, Defendants JOHN DOES 1-15 (hereinafter referred to as the “unknown Officers”), whose identities are unknown but who are known to be police officers and employees of the NYPD who, upon information and belief, were tortfeasors in the events complained of herein, were duly sworn officers and employees of the City and the NYPD.

7. At all times referenced herein, Officer Campanella and the unknown Officers were acting within the scope of their employment with the City and the NYPD.

FACTS

8. On or about November 11, 2012 between 4:00 and 5:00 o’clock in the morning, Plaintiff was lawfully present on the sidewalk outside the B.B. King Blues Club & Grill, located at 237 West 42nd Street, New York, County of New York.

9. On or about November 11, 2012 between 4:00 and 5:00 in the morning, Officer Campanella and the unknown Officers were present at the aforementioned location.

10. On or about November 11, 2012 between 4:00 and 5:00 in the morning, Officer Campanella and the unknown Officers were or had recently been engaged in breaking up a large altercation that occurred between an unknown number of unknown persons at or near the aforementioned location. Plaintiff had not been involved in the altercation.

11. On or about November 11, 2012 between 4:00 and 5:00 in the morning, Officer Campanella and the unknown Officers had in their possession and control, and under their

direction, a vicious and dangerous German Shepherd dog (hereinafter referred to as a “Police K-9”), which was trained to intimidate selected members of the general public and attack on command.

12. At all times relevant to this complaint, Defendants knew or should have known, by reason of having owned, trained, supervised, and controlled the Police K-9, that the dog had vicious and violent propensities.

13. On or about November 11, 2012 between 4:00 and 5:00 in the morning, as Plaintiff was attempting to depart from the aforementioned location, he was, without provocation, prior warning, or probable cause, accosted by Officer Campanella and the unknown Officers.

14. Upon being accosted by Officer Campanella and the unknown Officers, Plaintiff, attempting to demonstrate that he posed no threat to and intended to cooperate with the police, raised his hands above his head and began to slowly back away from them.

15. Thereupon, Officer Campanella and the unknown Officers rushed at Plaintiff, tackling him and forcing him to the concrete sidewalk, where they punched, kicked, beat and otherwise struck him with some number of unknown hard objects.

16. Shortly thereafter, the Police K-9 was released from the control of Officer Campanella and the unknown officers, and allowed to attack and bite Plaintiff when he was restrained on the ground and no longer able to defend himself or resist the unlawful onslaught of force that had already been applied to his person.

17. As a result of the occurrences detailed above, Plaintiff suffered and continues to suffer serious physical injuries, including disfigurement of his right arm, and emotional distress, requiring hospitalization, medical care, and surgical treatment.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS:
NEGLIGENCE

18. Plaintiff repeats, reiterates, and realleges each and every allegation contained in Paragraphs “1” through “17” of this Complaint, inclusive, as though fully set forth herein.

19. At all times relevant to this complaint, Defendants, their servants, agents, and employees had a duty to Plaintiff and the general public to train, supervise, and control the Police K-9 so as to prevent needless and unwarranted physical injury resulting from attacks by the animal.

20. At all times relevant to this complaint, Defendants, their servants, agents, and employees failed to properly train, supervise, and control the Police K-9.

21. At all times relevant to this complaint, Defendants, their servants, agents, and employees had a duty to refrain from engaging in conduct creating an unreasonable, substantial, and unjustifiable risk of physical injury to Plaintiff and to the general public.

22. Defendants, their servants, agents, and employees, in tackling Plaintiff to the sidewalk, punching, kicking, beating, and otherwise striking him, created an unreasonable, substantial, and unjustifiable risk of physical injury to Plaintiff.

23. By reason of the foregoing, Defendants were negligent, careless, and acted with reckless disregard for the safety of others.

24. Furthermore, Defendants acted with gross recklessness, wanton, intentional and malicious regard for Plaintiff and with a reckless indifference to the safety of the public and Plaintiff in particular.

25. By reason of Defendants’ negligent, careless, and reckless conduct, Plaintiff suffered and continues to suffer serious physical injuries, including disfigurement of his right

arm, and emotional distress, for which he is entitled to relief in the form of monetary damages exceeding all jurisdictional limits of the lower courts.

26. By reason of the foregoing, Plaintiff is entitled to punitive and/or exemplary damages in a sum to be determined by this Court at the time of trial of this action, to punish and deter Defendants from such conduct in the future, and to serve as a warning to the public at large.

27. Defendants are jointly and severally liable for the full extent of Plaintiff's non-economic damages pursuant to CPLR § 1602(5), by reason of their having acted with reckless disregard for the safety of others.

28. Defendants are jointly and severally liable for the full extent of Plaintiff's non-economic damages pursuant to CPLR § 1602(11) by reason of having acted knowingly and intentionally to cause physical and emotional harm to Plaintiff.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS:
STRICT LIABILITY

29. Plaintiff repeats, reiterates, and realleges each and every allegation contained in Paragraphs "1" through "28" of this Complaint, inclusive, as though fully set forth herein.

30. Defendants, by reason of their having owned, trained, supervised, and controlled the Police K-9, knew or should have known that the animal had vicious and dangerous propensities.

31. The Police K-9 caused serious and disfiguring physical injuries and emotional injuries to Plaintiff.

32. By reason of the foregoing, Plaintiff suffered and continues to suffer serious physical injuries, including disfigurement of his right arm, and emotional distress, for which he

is entitled to relief in the form of monetary damages exceeding all jurisdictional limits of the lower courts.

33. By reason of the foregoing, Defendants are strictly liable for Plaintiff's damages.

34. By reason of the foregoing, Plaintiff is entitled to punitive and/or exemplary damages in a sum to be determined by this Court at the time of trial of this action, to punish and deter Defendants from such conduct in the future, and to serve as a warning to the public at large.

35. Defendants are jointly and severally liable for the full extent of Plaintiff's non-economic damages pursuant to CPLR § 1602(5), by reason of their having acted with reckless disregard for the safety of others.

36. Defendants are jointly and severally liable for the full extent of Plaintiff's non-economic damages pursuant to CPLR § 1602(11) by reason of having acted knowingly and intentionally to cause physical and emotional harm to Plaintiff.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS:
ASSAULT AND BATTERY

37. Plaintiff repeats, reiterates, and realleges each and every allegation contained in Paragraphs "1" through "36" of this Complaint, inclusive, as though fully set forth herein.

38. Defendants, their agents, servants, employees, and others whom it was their duty to control and supervise assaulted, battered, beat, threatened, shoved, and pushed Plaintiff, and caused him to be attacked and bitten by a dangerous and vicious dog.

39. Said actions were willful, malicious, intentional, unwarranted, intended to frighten and shock Plaintiff, to cause Plaintiff physical, mental, and emotional injury, and were undertaken without any just cause or provocation.

40. Said actions were undertaken carelessly and unnecessarily, for no purpose reasonably related to the duties or safety of Officer Campanella and the unknown Officers.

41. As a result of the assault and battery, Plaintiff suffered serious injuries as already detailed herein.

42. By reason of the foregoing, Plaintiff is entitled to relief in the form of monetary damages exceeding all jurisdictional limits of the lower courts.

43. By reason of the foregoing, Plaintiff is entitled to punitive and/or exemplary damages in a sum to be determined by this Court at the time of trial of this action, to punish and deter Defendants from such conduct in the future, and to serve as a warning to the public at large.

44. Defendants are jointly and severally liable for the full extent of Plaintiff's non-economic damages pursuant to CPLR § 1602(5), by reason of their having acted with reckless disregard for the safety of others.

45. Defendants are jointly and severally liable for the full extent of Plaintiff's non-economic damages pursuant to CPLR § 1602(11) by reason of having acted knowingly and intentionally to cause physical and emotional harm to Plaintiff.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS:
FALSE ARREST AND IMPRISONMENT

46. Plaintiff repeats, reiterates, and realleges each and every allegation contained in Paragraphs "1" through "45" of this Complaint, inclusive, as though fully set forth herein.

47. Defendants, their agents, servants, employees, and those whom it was their duty to control did, with intent to deprive the Plaintiff of his physical liberty, deprive the Plaintiff without his consent of his physical liberty, in that they physically restrained him for an extended duration from the time of the events complained of herein.

48. Defendants' conduct was unjustified, having been undertaken without probable cause to effect a lawful arrest.

49. By reason of the foregoing, Plaintiff suffered serious injuries as already detailed herein.

50. By reason of the foregoing, Plaintiff is entitled to relief in the form of monetary damages exceeding all jurisdictional limits of the lower courts.

51. By reason of the foregoing, Plaintiff is entitled to punitive and/or exemplary damages in a sum to be determined by this Court at the time of trial of this action, to punish and deter Defendants from such conduct in the future, and to serve as a warning to the public at large.

52. Defendants are jointly and severally liable for the full extent of Plaintiff's non-economic damages pursuant to CPLR § 1602(5), by reason of their having acted with reckless disregard for the safety of others.

53. Defendants are jointly and severally liable for the full extent of Plaintiff's non-economic damages pursuant to CPLR § 1602(11) by reason of having acted knowingly and intentionally to cause physical and emotional harm to Plaintiff.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS:
MALICIOUS PROSECUTION

54. Plaintiff repeats, reiterates, and realleges each and every allegation contained in Paragraphs "1" through "53" of this Complaint, inclusive, as though fully set forth herein.

55. Subsequent to the events complained of herein, Defendants, their agents, servants, and employees caused a criminal complaint to be filed against the Plaintiff in the Criminal Court of the City of New York for the County of New York, charging him with violations of NYPL §§ 205.30 and 240.20.

56. The aforementioned charges were baseless, unjustified, devoid of merit, and brought maliciously by Defendants, without probable cause to believe the Plaintiff had committed any acts constituting the crimes charged in the criminal complaint.

57. The criminal complaint was voluntarily dismissed by the New York County District Attorney's office on April 23, 2013.

58. By reason of the foregoing, Plaintiff is entitled to relief in the form of monetary damages exceeding all jurisdictional limits of the lower courts.

59. By reason of the foregoing, Plaintiff is entitled to punitive and/or exemplary damages in a sum to be determined by this Court at the time of trial of this action, to punish and deter Defendants from such conduct in the future, and to serve as a warning to the public at large.

60. Defendants are jointly and severally liable for the full extent of Plaintiff's non-economic damages pursuant to CPLR § 1602(5), by reason of their having acted with reckless disregard for the safety of others.

61. Defendants are jointly and severally liable for the full extent of Plaintiff's non-economic damages pursuant to CPLR § 1602(11) by reason of having acted knowingly and intentionally to cause physical and emotional harm to Plaintiff.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS:
VIOLATIONS OF 42 U.S.C. § 1983

62. Plaintiff repeats, reiterates, and realleges each and every allegation contained in Paragraphs "1" through "61" of this Complaint, inclusive, as though fully set forth herein.

63. All Defendants are "persons" within the meaning of 42 U.S.C. 1983.

64. At all times relevant to this complaint, Defendants acted under color of the statutes, ordinances, regulations, and rules of the State of New York.

65. Defendants subjected Plaintiff to the deprivation of his rights under the Fourth Amendment to the Constitution of the United States, in that they subjected him to an unlawful seizure of his person without probable cause to effect an arrest, and in that they subjected him to unreasonable, excessive, unwarranted, and potentially deadly force during the course of that unlawful arrest.

66. Defendants subjected Plaintiff to the deprivation of his rights under the Fourteenth Amendment to the Constitution of the United States, in that the aforementioned violations of his Fourth Amendment rights were undertaken without affording him due process of law.

67. Defendants further subjected Plaintiff to the deprivation of his rights under the Fourteenth Amendment to the Constitution of the United States in that the aforementioned violations of his Fourth Amendment rights deprived him of the equal protection of the laws, being motivated in whole or in part by racial animus towards African-Americans.

68. By reason of the foregoing, Defendants violated 42 U.S.C. § 1983.

69. By reason of the foregoing, Plaintiff suffered serious injuries as already detailed herein.

70. By reason of the foregoing, Plaintiff is entitled to relief in the form of monetary damages exceeding all jurisdictional limits of the lower courts.

71. By reason of the foregoing, Plaintiff is entitled to punitive and/or exemplary damages in a sum to be determined by this Court at the time of trial of this action, to punish and deter Defendants from such conduct in the future, and to serve as a warning to the public at large.

72. Defendants are jointly and severally liable for the full extent of Plaintiff's non-economic damages pursuant to CPLR § 1602(5), by reason of their having acted with reckless disregard for the safety of others.

73. Defendants are jointly and severally liable for the full extent of Plaintiff's non-economic damages pursuant to CPLR § 1602(11) by reason of having acted knowingly and intentionally to cause physical and emotional harm to Plaintiff.

**AS AND FOR A FIFTH CAUSE OF ACTION AGAINST ALL DEFENDANTS:
VIOLATIONS OF NEW YORK STATE CIVIL RIGHTS LAW § 79-n**

74. Plaintiff repeats, reiterates, and realleges each and every allegation made in Paragraphs "1" through "73" of this Complaint, inclusive, as though fully set forth herein.

75. Defendants, their agents, servants, and employees intentionally selected Plaintiff as a target for physical violence, based in whole or in part on their belief that, because Plaintiff was an African-American, Officer Campanella and the unknown Officers were justified in subjecting Plaintiff to the unlawful, excessive, abusive, and potentially deadly levels of physical force already detailed herein.

76. By reason of the foregoing, Defendants violated § 79-n of the New York Civil Rights Law.

77. By reason of the foregoing, Plaintiff suffered serious injuries as already detailed herein.

78. By reason of the foregoing, Plaintiff is entitled to relief in the form of monetary damages exceeding all jurisdictional limits of the lower courts.

79. By reason of the foregoing, Plaintiff is entitled to punitive and/or exemplary damages in a sum to be determined by this Court at the time of trial of this action, to punish and deter Defendants from such conduct in the future, and to serve as a warning to the public at large.

80. Defendants are jointly and severally liable for the full extent of Plaintiff's non-economic damages pursuant to CPLR § 1602(5), by reason of their having acted with reckless disregard for the safety of others.

81. Defendants are jointly and severally liable for the full extent of Plaintiff's non-economic damages pursuant to CPLR § 1602(11) by reason of having acted knowingly and intentionally to cause physical and emotional harm to Plaintiff.

WHEREFORE, Plaintiff prays for judgment against all Defendants on each and every cause of action set forth herein, with costs, interest, and disbursements, together with such other and further relief as this Honorable Court should deem just and equitable.

Dated: New York, New York
May 3, 2013

NAPOLI BERN RIPKA SHKOLNIK, LLP

/S/

By: Joseph P. Napoli
350 Fifth Avenue, Suite 7413
New York, New York 10118
(212) 267-3700

VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

Joseph P. Napoli, an attorney duly admitted to practice law in the Courts of this State, affirms the following under penalties of perjury:

I am the attorney for the plaintiff(s) in the above entitled-action. I have read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and know the contents thereof, and upon information and belief, affirmant believes after an inquiry reasonable under the circumstances the matters alleged herein to be true, and that the contentions herein are not frivolous, as that term is defined in Part 130.

This verification is made by your affirmant because plaintiff is not presently in the county wherein your affirmant maintains an office.

The source of affirmant's information and the grounds of his belief are communications, papers, reports and investigations contained in the file maintained by this office.

Dated: New York, New York
May 3, 2013

/S/
JOSEPH P. NAPOLI

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ANTHONY POLLARD,

Plaintiff,

Index No.:

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER LOUIS CAMPANELLA,
Shield #00331, and JOHN DOES 1-15,

Defendants.
-----X

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SUMMONS and VERIFIED COMPLAINT

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NAPOLI BERN RIPKA SHKOLNIK, LLP
Attorneys for : Plaintiff
350 Fifth Avenue, Suite 7413
New York, New York 10118
(212) 267-3700

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By my signature below, the undersigned attorney certifies pursuant to 22 NYCRR §130-1.1-a that I have read the within papers and that, to the best of my knowledge and belief, the same are not frivolous as that term is defined in 22 NYCRR §130-1.1(c).

/S/ _____
Joseph P. Napoli

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PLEASE TAKE NOTICE:

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of an
court on _____ 2009.

duly entered in the office of the clerk of the within named

☐ NOTICE OF SETTLEMENT

that an order
will be presented for settlement to the HON.
within named Court, at
at _____ O'clock ____ M.

of which the within is a true copy
one of the judges of the
on _____ 2009

Dated, May 3, 2013

Yours, etc.

NAPOLI BERN RIPKA SHKOLNIK, LLP